

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS----- X
RONALD MCKINNEY,Plaintiff, **SUMMONS**

-against-

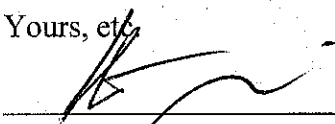
Index No.:

THE CITY OF NEW YORK, POLICE OFFICER JOHN
CHILELLI, Tax # 951608, SERGEANT TIMOTHY
BROVAKOS, Tax # 943025, and POLICE OFFICERS
JOHN DOES # 1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,The Basis of Venue is:
Location of IncidentPlaintiff designates Queens
County as the place of trial.Defendants.
----- X**To the above named Defendants:**

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer to the Complaint, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 19, 2015

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER JOHN CHILELLI, Tax # 951608, Patrol Borough Queens South, 71-
01 Parsons Blvd., Flushing, NY 111365
SERGEANT TIMOTHY BROVAKOS, Tax # 943025, Patrol Borough Queens South,
71-01 Parsons Blvd., Flushing, NY 111365

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
RONALD MCKINNEY,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOHN
CHILELLI, Tax # 951608, SERGEANT TIMOTHY
BROVAKOS, Tax # 943025, and POLICE OFFICERS
JOHN DOES # 1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.
----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff RONALD MCKINNEY, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Amended Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 21, 2013, at approximately 1:00 a.m., plaintiff Ronald McKinney, while lawfully in the vicinity of 106-16 159th Street, Queens, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Additionally, plaintiff was assaulted, battered, and subjected to the use of excessive force by the defendant police officers while they were arresting plaintiff. After the defendant police officers assaulted plaintiff, they failed to provide him adequate medical treatment. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, arrested, and used excessive force against plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Ronald Mckinney is a resident of the State of New York.
3. POLICE OFFICER JOHN CHILELLI, Tax # 951608, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER JOHN CHILELLI, Tax # 951608, is and was at all times relevant herein, assigned to Patrol Borough Queens South.
5. POLICE OFFICER JOHN CHILELLI, Tax # 951608 is being sued in his individual and official capacity.
6. SERGEANT TIMOTHY BROVAKOS, Tax # 943025, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. SERGEANT TIMOTHY BROVAKOS, Tax # 943025, is and was at all times relevant herein, assigned to Patrol Borough Queens South.
8. SERGEANT TIMOTHY BROVAKOS, Tax # 943025, is being sued in his individual and official capacity.
9. New York City Police Officers John Does #1-10 are and was at all times relevant herein officers, employees, and agents of the New York City Police Department.
10. New York City Police Officers John Does #1-10 are being sued in his individual and official capacities.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department and at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On October 21, 2013, at approximately 1:00 a.m., plaintiff was lawfully walking in the vicinity of 106-16 159th Street, Queens, New York, when the individually named defendant police officers racially profiled plaintiff and unlawfully stopped, questioned, frisked, searched, unlawfully seized, falsely arrested, falsely imprisoned plaintiff and subjected plaintiff to excessive force, assault and battery.

18. Thereafter, without provocation or legal justification, the defendant police officers tackled plaintiff to the ground and began kicking and punching plaintiff causing plaintiff to suffer serious physical injuries, including but not limited to two fractured legs.

19. Notably, at no time did plaintiff resist arrest in any way.

20. At no time did the defendant police officers recover any illegal drugs, weapons or contraband of any kind from plaintiff's person or from a location within plaintiff's possession, custody or control.

21. At no time did the defendant police officers observe plaintiff commit a crime or break a law, and the defendant police officers did not have a legal basis or probable cause to arrest plaintiff.

22. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and arrested him without legal justification or probable cause.

23. Plaintiff immediately requested medical attention for his injuries; however the police officers failed to provide him with medical attention.

24. Plaintiff was then thrown into a police vehicle and transported to the 103rd precinct.

25. Once again, upon arrival at the 103rd precinct, plaintiff requested that he be provided medical attention for the injuries inflicted by the defendant police officers.

26. Finally, the police officers called EMS to respond to the 103rd precinct.

27. Upon arrival at the 103rd precinct, EMS assessed plaintiff's injuries and transported him to Queens Hospital for further medical treatment.

28. Upon arrival at Queens Hospital, plaintiff was treated for his injuries, which included two fractured legs.

29. On or about October 21, 2013 at approximately 6:00 p.m., plaintiff was discharged from Queens Hospital.

30. Eventually, on October 21, 2013, plaintiff was transported to Queens Central Booking.

31. The individually named defendant police officers falsely communicated to the Queens District Attorney's Office that plaintiff had committed a crime despite knowing that they lacked a legal basis to stop plaintiff and had no basis to allege plaintiff committed a crime.

32. On or about October 21, 2013, after approximately 24 hours in custody, plaintiff was arraigned in Queens Central Booking and bail was set by the Judge.

33. Plaintiff was unable to post bail and therefore was remanded to the Department of Correction.

34. Thereafter, while in the custody of the Department of Correction, plaintiff required further medical treatment for the injuries inflicted by the defendant police officers.

35. Specifically, plaintiff received further treatment at Bellevue Hospital where he was required to undergo surgery to repair his leg fractures.

36. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, assault, battery, and use of excessive force against plaintiff.

37. The unlawful stop, question, frisk, search, false arrest, false imprisonment, assault, battery and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth, Fifth Amendment and Fourteenth Amendment Rights

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

40. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

43. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

44. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

45. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

46. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

49. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

50. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

56. Defendants lacked probable cause to search plaintiff.

57. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The use of excessive force by the defendant police officers in tackling plaintiff to the ground and repeatedly punching and kicking plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SIXTH CAUSE OF ACTION

Assault

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

67. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Battery

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

73. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligence

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. Defendants owed a duty of care to plaintiff.

79. To the extent defendants claim that plaintiff's physical injuries were not caused by the defendants during the course of plaintiff's arrest, and instead were accidentally caused by defendants either before or after they arrested plaintiff then defendants breached that duty of care by causing plaintiff to suffer physical injuries as a result of defendants careless, reckless, negligent, and/or accidental behavior.

80. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

81. All of the foregoing occurred without any fault or provocation by plaintiff.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. By the actions described herein, the individually named police officers and correction officer defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff Ronald McKinney. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff

and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

87. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Defendants despite being aware that plaintiff was seriously injured delayed plaintiff's medical treatment and refused to administer and properly procure, immediate and adequate medical attention.

93. The delay in medical treatment to plaintiff's injuries resulted in serious leg injuries that would have been prevented if plaintiff was treated in a timely manner.

94. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

97. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

98. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

100. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELVTH CAUSE OF ACTION

Failure to Intervene

101. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

103. Defendants failed to intervene to prevent the unlawful conduct described herein.

104. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

105. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

108. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

109. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Ronald McKinney demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 19, 2015

By: _____

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER JOHN CHILELLI, Tax # 951608, Patrol Borough Queens South, 71-01 Parsons Blvd., Flushing, NY 111365
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 19, 2015



STUART E. JACOBS